

Terms of Use for the Online Platform Caluno

Convenience translation from the German original. In case of discrepancies, the German version shall prevail.

1. Scope and Contracting Parties

- (1) These Terms of Use govern the user relationship between the operator of the internet communication platform Caluno of Caluno GmbH, Werner-Otto-Straße 21-27, 22179 Hamburg, Germany (hereinafter the “Operator”) and the registered users (hereinafter collectively “Users” or “User”) of the platform.
- (2) The platform is made available to natural persons for private, non-commercial use within a free-of-charge area (“Private Users”) and to organisations for use against payment (“Organisation Users”).
- (3) Upon completion of registration, the User accepts these Terms of Use as binding.
- (4) Any person registering a legal entity acts as its representative.
- (5) Persons who have not yet reached the age of 18 may neither register themselves nor register a legal entity as its representative, and may not conclude a contract with the Operator.
- (6) In order to register on the platform, each User must personally conclude a user agreement with the Operator on the basis of these Terms of Use. This also applies to employees of Users (legal entities, organisations) that are already registered on the platform. Group registrations are not possible. Each registration is assigned to the User who concluded the user agreement personally. User agreements and/or registrations cannot be transferred to other persons; the assignment of claims against the Operator arising from the user relationship is excluded. The Operator hereby objects to the assumption of a User’s obligations by third parties.

2. Definitions

- (1) Private / volunteer User: natural persons who use the platform exclusively for private or volunteer purposes (no commercial or organisational business operations).
- (2) Organisation: legal entities, associations of persons, companies, registered associations, public authorities or other institutions that use the platform for professional, organisational, commercial or similar purposes.
- (3) Free area: functionalities that are available to private and volunteer Users free of charge.

- (4) Paid area (subject to charge): extended or organisation-specific functions that can be used against payment.

3. Subject Matter of the Contract and Description of Services

- (1) The Operator provides an online communication platform through which Users can offer, present, plan, organise and document voluntary, unpaid civic engagement, network with one another and communicate via the functions provided.
- (2) The specific design of the main performance obligations (type, scope and quality of the functions provided and, where applicable, storage and function quotas) results from the respective current service description for the free area and for the paid plans, and constitutes a service description that is exempt from the review of content of standard terms and conditions. For Organisations, the service description set out in the respective data processing agreement applies additionally.
- (3) The Operator is entitled to further develop its range of services in accordance with Section 15 below (Amendment of the Terms of Use and Services), provided that the contractually essential core of the agreed main service is preserved and Users are not unreasonably disadvantaged.

4. User Groups and Pricing Models

- (1) Private Users (free area)
 - (a) Use of the platform's core functions is free of charge for Private Users.
 - (b) Private Users owe no consideration for the use of the free area, including in the form of providing personal data. The Operator processes the personal data of Private Users exclusively to the extent necessary to provide the platform or to comply with legal requirements. The granting of rights of use to content pursuant to Section 7 serves solely the operation of the platform.
- (2) Organisation Users (paid area)
 - (a) Organisations (e.g. registered associations, companies, public-law bodies) may book paid plans which include, in particular, extended functionality, higher quotas, support services or additional administration functions.
 - (b) The prices, scope of functions, contract terms and notice periods applicable to the paid plans from time to time are set out in the separate overview of services and fees and constitute price and service agreements which, in principle, are not subject to the review of content of standard terms and conditions, insofar as they directly determine the main service and the fee.
 - (c) Any combination of several service components in a single flat fee constitutes a uniform service of its own kind, the content of which comprises the right to use all facilities and functions included in the plan.
 - (d) The Service Level Agreement (SLA) additionally applies to paid plans.

5. Registration and Conclusion of Contract, Accounts and User Identity

- (1) Use of the platform requires registration by providing the data requested in the registration form. The user contract is concluded in accordance with paragraph 2. There is no entitlement to registration or to the conclusion of a user contract; the Operator may refuse a registration without stating reasons. The Operator may restrict or terminate an existing registration, in particular in the event of violations of the rules of conduct and communication applicable on the platform or of statutory provisions, only in accordance with Section 9 (Suspension) and Section 16 (Termination).
- (2) To conclude a user agreement, the User must provide the information requested during registration completely and truthfully. After the requested data has been entered correctly, the Operator sends the User a confirmation e-mail to verify the e-mail address. By clicking the confirmation link, the User makes an offer to conclude a user contract. The Operator accepts this offer by activating the User for use of the platform. The user agreement is thereby concluded.
- (3) First name and surname must be provided truthfully during registration. Private Users may use a self-chosen display name (pseudonym) towards other Users in the generally accessible areas of the platform. This does not apply in the separate areas of Organisations insofar as the respective Organisation requires the full name to be provided for organising its volunteer engagement, in particular for proof of deployment, insurance cover or safeguarding concepts. Display names must not be misleading, in particular must not give the impression that they refer to another real person or to an Organisation, and must comply with the requirements of Section 8.
- (4) Each User may create only one account per user group (Private User / Organisation User), unless expressly agreed otherwise.
- (5) The User is obliged to keep access credentials secret and to prevent unauthorised access to their account by third parties; any secondary burden of presentation in the event of legal infringements committed via their access remains unaffected. If the User becomes aware of, or suspects, misuse of the access credentials, the Operator must be informed without undue delay. In such a case, the Operator is entitled to block access immediately.

6. Access Credentials and User Profile

- (1) The access credentials consist of the e-mail address provided during registration and a password. The User may choose the password freely; however, it must meet certain security criteria, about which the User is informed when choosing the password.
- (2) Simultaneous access by several persons using the personal access credentials of one User is not permitted.

7. Rights of Use to Content

- (1) By posting content on the platform, the User grants the Operator a non-exclusive, territorially unrestricted right of use to such content, to the extent necessary for operating the platform, for displaying, reproducing, distributing, making publicly available and backing up the contributions, and for fulfilling legal obligations.
- (2) The licence serves in particular to technically store, reproduce and make publicly available the content and, where applicable, to display it in adapted form (e.g. thumbnails, preview images), without this constituting a separate use by the Operator subject to remuneration.
- (3) In relation to the Operator, the User retains all rights to their content and may, in principle, terminate the granted licence with effect for the future by deleting the content or their account; any statutory retention obligations or legitimate interests of the Operator in continued storage remain unaffected.
- (4) The User warrants that they hold the rights required for the rights of use granted and that they do not infringe any rights of third parties (in particular copyrights, neighbouring rights, trademark rights or personality rights).

8. Communication Standards, Content and Obligations of Conduct

- (1) As a private provider, the Operator is entitled to define the business purpose of the platform in more detail and to set communication standards in order to ensure respectful interaction and a safe environment for Users. To this extent, the User grants the Operator a right to determine performance (Section 315 BGB).
- (2) Users undertake not to use the platform to disseminate content that is unlawful, in particular criminal, racist, sexist, degrading, discriminatory, insulting, defamatory or harmful to minors, to infringe the rights of third parties or to send unsolicited messages in bulk, and to observe the community standards established by the Operator.
- (3) The community standards specify the conditions under which content may be published and thereby modify the Operator's main performance obligation.
- (4) Without prejudice to the foregoing provisions, the User is obliged to refrain from any actions that jeopardise the operation of the platform or go beyond its intended use. In particular, the User is obliged to refrain from sending viruses or other technologies that could harm the Operator or other Users, from subjecting the Operator's infrastructure to excessive load, or from otherwise disrupting or jeopardising the functioning of the platform.
- (5) The User shall furthermore refrain from collecting or using information about other Users, in particular e-mail addresses or telephone numbers, without their prior consent.
- (6) For content posted by Organisations in their separate areas, the provisions of the data processing agreement apply to that extent, and such content falls within the

responsibility of the respective Organisation.

- (7) The User indemnifies the Operator against all claims asserted against the Operator by other Users or other third parties on account of an infringement of their rights by content posted by the User or by the User's use of such content. In this context, the User bears the costs of the Operator's legal defence, including all court and attorney fees in the statutory amount. The claim to indemnification does not exist if the User is not responsible for the infringement. In the event of a claim by third parties, the User is obliged, upon request, to provide the Operator without undue delay, truthfully and completely, with all information required to examine the claims and to defend against them. Any further liability of the User beyond these provisions remains unaffected.

9. Deletion of Content, Suspension and Termination of User Accounts

- (1) The Operator is entitled to delete content posted by Users in whole or in part, or to withhold its publication, if, in its assessment, there are indications that the content violates these Terms of Use, the community standards or statutory requirements, or that the User has otherwise culpably breached contractual obligations. In such a case, the Operator may also warn the User and/or exclude them temporarily or permanently from use of the platform, or restrict the use of individual functionalities permanently or for a limited period. In the event of a temporary or permanent suspension, the Operator will inform the User of this with reasonable notice before the restriction takes effect and will state the reasons in text form (Section 126b BGB), unless compelling reasons prevent this. The aforementioned notice period does not apply if the termination or permanent suspension is based on mandatory statutory provisions or an order of a public authority, or if the Operator can prove that the User has repeatedly violated these Terms of Use and that this has led to the termination or permanent suspension.
- (2) If the User believes that the removal of content or the restriction of access by the Operator was wrong, they may request a review of a moderation decision by sending a notification to support@caluno.org. The Operator will review its decision again on the basis of the complaint. Users can find more detailed information about the Operator's complaint management [here](#). (Link to follow)

10. Data Protection and Data Processing

- (1) The Operator processes Users' personal data in order to perform the user contract, to provide the platform functions and to ensure the security of the platform.
- (2) Further details of the data processing, the technologies used (including cookies and similar technologies), the legal bases, storage periods and the rights of data subjects (in particular access, rectification, erasure, objection and data portability) are set out in a separate privacy policy, which forms part of this user relationship.

11. Fees, Terms of Payment and Invoicing (Organisation Users)

- (1) For paid plans, the fees stated at the time the contract is concluded are owed; these may include, in particular, basic fees, usage-based fees and, where applicable, additional fees for optional services.
- (2) Fees are, in principle, payable in advance for the respective billing period; the specific billing method (e.g. prepaid, postpaid, term-based models) is set out in the overview of services and fees.
- (3) At least one common and reasonable free-of-charge payment method is offered, while a separate fee may be charged for other payment services with added value, provided that statutory fee prohibitions (e.g. for certain bank transfers, direct debits or card payments) are observed.

12. Availability

- (1) The Operator aims for a monthly average availability of the platform of not less than 99%.
- (2) This availability does not cover periods of unavailability caused by faults in the data transmission network or falling within the responsibility of the data transmission company, nor periods of unavailability in cases of force majeure or other cases in which the cause of the unavailability lies outside the Operator's sphere of responsibility, in particular power outages and disruptions of telecommunications networks. Furthermore, periods of unavailability due to routine maintenance or update measures between 8:00 p.m. and 6:00 a.m., as well as due to announced necessary maintenance, are not covered.

13. Liability

- (1) In the free area, the Operator is liable only for intent and gross negligence. It is liable for defects only if it has fraudulently concealed them. Liability under the German Product Liability Act (Produkthaftungsgesetz) remains unaffected.
- (2) In the case of property damage and financial loss caused by simple negligence, the Operator is liable only for breach of a material contractual obligation (cardinal obligation), and the amount of liability is limited to the damage typically foreseeable for this type of contract; any further liability for slight negligence is excluded unless mandatory statutory liability applies.
- (3) Limitations and exclusions of liability do not apply to any guarantee assumed, to fraudulently concealed defects, or to claims under mandatory statutory liability provisions.
- (4) Content published or linked by Users does not reflect the opinion of the Operator. The Operator assumes no responsibility for the accuracy and completeness of the information contained in such content, nor for its quality, security or lawfulness. The Operator is liable for third-party content that is merely referred to in a generally

accessible manner, or that is posted by Users on their own responsibility, only within the scope of the statutory provisions and the secondary obligations to examine and act that apply to host providers.

- (5) In all other respects, the Operator is liable in accordance with the statutory provisions. In relation to Organisation Users, the provisions of the data processing agreement apply additionally.

14. Special Provisions for Organisation Accounts (Data Processing on Behalf and Archiving)

- (1) If Users wish to use the platform as an Organisation in separate areas on the platform and to process personal data of their users, employees or other third parties, the Operator offers the conclusion of a separate data processing agreement pursuant to Art. 28 GDPR.
- (2) The data processing agreement governs, in particular, the subject matter and duration of the processing, the nature and purpose of the processing, the categories of data subjects and data, the obligations and rights of the Operator as processor, and the technical and organisational measures.
- (3) In the relationship between this user contract and the data processing agreement, in the event of conflicts, the specific provisions of the data processing agreement take precedence over the provisions of this user contract insofar as the processing of personal data on behalf is concerned.
- (4) The Operator merely provides the technical platform for the processing and storage of the content and data posted by Users and gives no warranty that the use of the platform by Organisations meets the requirements for GoBD-compliant bookkeeping or archiving of tax-relevant receipts and documents (GoBD: German principles for the proper keeping and retention of books, records and documents in electronic form and for data access). Responsibility for fulfilling the statutory obligations regarding the proper keeping and retention of books, records and documents – including the establishment of GoBD-compliant process documentation, an internal control system and compliance with tax retention periods – lies exclusively with the respective Organisation as User.

15. Amendment of the Terms of Use and the Range of Services

- (1) The Operator reserves the right to amend these Terms of Use, provided that this does not unreasonably disadvantage Users and that there is an objective reason for the amendment (e.g. a change in the legal situation, supreme court case law, technical development or expansion of the range of services), which is stated with sufficient specificity in the notice of amendment.
- (2) Users will be notified of amendments in text form at least one month before their planned entry into force, together with a reference to the right to object and the right to terminate free of charge until the amendments take effect.

- (3) If only non-contractual information changes (e.g. contact details, organisational notices), the Operator may also update this without a notice period, provided that no rights or obligations of Users are changed as a result.

16. Term and Termination

- (1) The user contract is concluded for an indefinite period, unless a minimum contract term has been agreed for certain paid plans.
- (2) Users may terminate the free user contract at any time without notice by deleting their account or by giving notice of termination in text form.
- (3) Organisation Users may terminate paid plans by ordinary notice with the notice period stated in the service description, effective at the end of the respective contract term; if no notice of termination is given, the contract is extended in accordance with the plan's provisions.
- (4) The right to extraordinary termination without notice for good cause, in particular in the event of serious breaches of contract, remains unaffected.

17. Final Provisions

- (1) The Operator is entitled to transfer its rights and obligations under this contract in their entirety to an affiliated company or to a third party. It shall notify Users of the intended transfer in text form, stating the new contracting party, at least four weeks before the transfer. Users are entitled to terminate the contract up to the time of the transfer with effect from that time; fees paid in advance for the period after the end of the contract will be refunded on a pro-rata basis. The Operator shall specifically point out this right of termination in the notification.
- (2) The Operator does not participate in dispute resolution proceedings before a consumer arbitration board.
- (3) The law of the Federal Republic of Germany applies, excluding its conflict-of-laws rules and the UN Convention on Contracts for the International Sale of Goods (CISG), unless mandatory consumer protection provisions at the consumer's place of residence conflict with this.
- (4) The place of jurisdiction for all disputes arising from and in connection with this user relationship with merchants, legal entities under public law or special funds under public law is the Operator's registered office; mandatory statutory places of jurisdiction remain unaffected.

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